

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DERRICK WEST,

Plaintiff,

SUMMONS

Index No.

Date Purchased:

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MOHAMMED M. RAHMAN SHIELD # 4071 OF THE
071 COMMAND, SERGEANT KEITH CHENG SHIELD
644 OF THE 071 COMMAND, POLICE OFFICERS
JOHN DOE AND JIM DOE #1-6 (FICTITIOUS NAMES
BECAUSE THEIR IDENTITIES ARE UNKNOWN),
ALL SUED IN THEIR CAPACITIES AS POLICE
OFFICERS AND IN THEIR INDIVIDUAL
CAPACITIES,

Plaintiff designates Kings
County as the place of
Trial.

The basis of the venue is
Kings County is the place
where the cause of action
arose.

Defendants.

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To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 14, 2021

/s/ROYCE RUSSELL, ESQ.

R-SQUARE, ESQ. PLLC.

Royce Russell, Esq.,

Attorneys for Plaintiff

112 West 34th Floor 18

New York, New York 10120

Tel: (718) 785-8890

Defendants' address:

The City of New York
c/o Office of the Corporation Counsel
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
One Police Plaza
New York, NY 10007

Police Officer Mohammed M. Rahman
Shield #4071
c/o 71st Pct.
421 Empire Blvd.
Brooklyn, NY 11225

Police Officer Keith Cheng
Shield #644
c/o 71st Pct.
421 Empire Blvd.
Brooklyn, NY 11225

Police Officer John Doe
Police Officers Jim Doe #1-6
One Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DERRICK WEST,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MOHAMMED M. RAHMAN SHIELD # 4071 OF THE
071 COMMAND, SERGEANT KEITH CHENG SHIELD
644 OF THE 071 COMMAND, POLICE OFFICERS
JOHN DOE AND JIM DOE #1-6 (FICTITIOUS NAMES
BECAUSE THEIR IDENTITIES ARE UNKNOWN),
ALL SUED IN THEIR CAPACITIES AS POLICE
OFFICERS AND IN THEIR INDIVIDUAL
CAPACITIES,

Defendants.

-----X

The Plaintiff, Derrick West, and by his attorney, R-SQUARE, ESQ. PPLC-ROYCE
RUSSELL ESQ., complaining of the defendants respectfully shows to this court and alleges:

1. Upon information and belief and at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief and at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the New York Police Department, hereinafter referred to as "NYPD" including all the police officers thereof.
3. That at all times hereinafter mentioned, specifically on the 16th day of January 2021 at approximately 8:00 p.m. - 9:00 p.m., at the location of 150 Tillary Street, Brooklyn, County of Kings within the State of New York, hereinafter referred to as the "location", the

Plaintiff was lawfully present and had not committed a crime.

4. Upon information and belief and at all times hereinafter mentioned, specifically on the 16th day of January 2021 at approximately 8:00 - 9:00 p.m., Police Officers Rahman Shield # 4071, Cheng Shield # 644, John Doe, Jim Doe #1-6, hereinafter collectively referred to as “the officers,” were screened, interviewed, hired by the “City”, trained by the “City”, were retained by the “City”, and were investigated, monitored, supervised and/or disciplined by the “City”.
5. Derrick West is a United States Citizen and is referred hereinafter as “West”.
6. West, at all relevant times hereinafter, resides at 328 Beckman Avenue, Bronx, New York.
7. Upon information and belief and at all times hereinafter mentioned, and specifically on the 16th day of January 2021, “Rahman”, “Cheng”, “John”, and “Jim Doe #1-6” and “Jane Doe”, at approximately 8:00 - 9:00 p.m., were present at or near the location of 150 Tillary Street, Brooklyn, New York and were acting within the scope of their employment and under the direction of the “City”, and “NYPD” as their agents, servants and/or employee(s).
8. That the Officers, individually and collectively, at all relevant times hereunder, were acting in their capacities as police officers, and were required to follow the rules and regulations as contained in the New York City Patrol Guidelines.
9. Plaintiff was lawfully attending a protest police violence and was filming the protest.
10. Plaintiff was the video recorder for the protest. As the protestors were ordered to clear the street, Plaintiff and others moved to the sidewalk.
11. The protestors continued to walk on the sidewalk toward the Manhattan Bridge. At this time, Defendant Cheng #644 (Asian Police Officer) approached and grabbed a Protestor in front of the Plaintiff.
12. In fear that the protestor would step back on Plaintiff’s fractured toe, Plaintiff stepped back

and in doing so lost his balance and stretched out to grab the protestor in efforts of breaking his fall.

13. Plaintiff never made contact with the protestor who was being grabbed however the focused turned to him given he was filming.
14. Defendant Cheng #644 swung at the Plaintiff in an attempt to knock his phone out of his hands.
15. The Plaintiff managed to hold his phone when he was struck in the face.
16. Plaintiff blocked two other punches thrown by the Defendant Cheng #644 as other Defendants-Police Officers including Defendants Rahman #4071 and Cheng #644 assaulted the Plaintiff by punching him as he was tackled to the ground. While on his knees, the Plaintiff was punched several times.
17. Plaintiff yelled "I suffer from Epilepsy and please do not hit me in the head". The Defendants ignored his pleas and dragged him to the ground.
18. Plaintiff, while on the ground, tried to protect himself by covering his head but was unsuccessful as his head was slammed against the concrete multiple times. Defendant Cheng then placed his knee on Plaintiff's neck while applying pressure on his head as Plaintiff's head was pressed against the concrete.
19. Plaintiff was handcuffed and transported to the 71st Precinct, and then transported to the 72nd Precinct where he was detained overnight.
20. Plaintiff received medical attention concerning his Epilepsy but not for his injuries.
21. Plaintiff was shackled to and from the hospital and was searched six times before being processed.
22. The plaintiff had committed no crime.

23. At no time did any named, known or unknown officer intervene in the illegal detention, search, seizure, false arrest, false imprisonment, battery, assault, abuse of power/authority and excessive force on behalf of West.
24. West was compelled to appear in Court on numerous dates.
25. West is and was at all times innocent of all charges and had committed no crime.
26. West sustained physical and emotional injury as a result of the defendants' conduct.
27. The Plaintiff filed and served a notice of claim on or about March 24th, 2021.
28. The City acknowledged receipt of the notice of claim and held a 50(h) hearing on June 15th, 2021.
29. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.
30. That this action is commenced within one year and 90 days after the cause of action arose.
31. That this action falls within one of the exceptions of CPLR § 1601.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT**

32. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "31" with the same force and effect as if more fully and at length set forth herein.
33. That beginning on or about the 16th day of January 2021, at the approximate hours of 8:00 - 9:00 p.m., 150 Tillary Street, Brooklyn in the County of Kings, State of New York continuing to 71st and 72nd Precincts until his release, the defendants, and their agents, servants and/or employees intentionally handcuffed and imprisoned the Plaintiff, without

any just cause or grounds therefore and held him against his will under full force of arms.

34. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds or any cause to believe that the Plaintiff was guilty of any crimes, or that the defendants had just cause to imprison the Plaintiff.
35. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest or imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
36. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; in that the Plaintiff was conscious of his confinement; the Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.
37. That by reason of the aforesaid false imprisonment and detention of the Plaintiff, he was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff have been otherwise damaged.
38. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AND AS FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS

39. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "38" with the same force and effect as if more fully and at length set forth herein.
40. That on the 16th day of January 2021, at approximately 8:00 - 9:00 p.m. the defendants, and their agents, servants and/or employees intentionally and maliciously arrested, handcuffed, detained and imprisoned Plaintiff, without any just cause or grounds therefor,

and held him against his will under full force of arms until he was released from the 71st and 72nd respectively and/or from Criminal Court.

41. That the Plaintiff was falsely arrested, imprisoned and accused by the defendants, their agents, servants and/or employees of having committed the crimes of Disorderly Conduct, Resisting Arrest, Assault, Obstruction of Governmental Administration among other charges.

42. That said arrest was caused by the defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the Plaintiff was guilty of any crime.

43. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

44. The defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuff and arrest the Plaintiff; the Plaintiff was conscious of his arrest and confinement; the Plaintiff did not consent to his arrest and confinement; and the arrest and confinement was not otherwise privileged.

45. That by reason of the aforesaid false arrest and false charges filed against him, the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff has been otherwise damaged.

46. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANTS
FOR ASSAULT AND BATTERY:

47. The Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs marked “1” through “46” with the same force and effect as if fully set forth herein.

48. Upon information and belief, on or about the 16th day of January, 2021, commencing at the approximate hour of 8:00 - 9:00 p.m. at or near the vicinity of 150 Tillary Street, Brooklyn, New York, Defendants “officers”, while acting in the scope of their employment as police officers and as agents for the defendant the “City”, without just cause or provocation and with great force and violence, tackled, threw West to the ground, struck West in the face and head and slammed West’s head onto the concrete punched, handcuffed, searched, and arrested the Plaintiff.
49. The Defendants refused to provide medical treatment to West the entire time in their custody.
50. The Plaintiff was searched, photographed and fingerprinted inside the precinct.
51. That the Defendants, their agents, servants and/or employees, including but not limited to “officers” were acting as an agent on behalf of the Defendant “City”, within the scope of their employment, intentionally, willfully, and maliciously battered and assaulted the Plaintiff, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact to the Plaintiff and intentionally did an act which threatened to and did cause such contact to the Plaintiff. That said acts caused apprehension of such offensive contact to the Plaintiff, and the “Officers,” in a hostile and/or offensive manner, touched and beat the Plaintiff without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such batter in and about his body and limbs.
52. That “Officers” used excessive and/or unreasonable force to effectuate the Plaintiff’s arrest.
53. That said acts occurred within the scope of the police officers’ employment with the “City”

54. That by reason of the aforesaid intentional battery and assault, the Plaintiff suffered and still continues to suffer from physical and psychological injuries and was rendered sick, sore, and lame, and among other things, suffered conscious pain and suffering, and has been otherwise damaged.

55. That by reason of the aforesaid battery and assault, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST DEFENDANTS FOR MALICIOUS PROSECUTION**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "55" with the same force and effect as if more fully and at length set forth herein.

57. The Defendants filled out false police reports and issued a DAT to the Plaintiff for the purpose of prosecuting him for the charge that they knew that he did not commit.

58. The Defendants took such actions, knowingly and with a malice disregard for the truth, and did so with the intent to cover up the illegal arrest of the Plaintiff and the injuries that he sustained at the hands of the police.

59. The Plaintiff was at all times innocent of any crime charged.

60. That due to the malicious prosecution, the Plaintiff was caused to be in conveyance and to take time from his employment to defend himself.

61. That by reason of the aforesaid malicious prosecution, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. § 1983 AGAINST THE CITY OF NEW YORK**

62. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "61" with the same force and effect as if more fully and at length set forth herein.
63. That upon information and belief, on or about the 16th day of January, 2021, at or about approximately 8:00 - 9:00 p.m. at or near the vicinity of 150 Tillary Street, Brooklyn, New York, and continuing to the 71st and 72nd Precincts, Brooklyn, New York, Defendant, "Officers" were present as part of their regular course of business/employment with the City of New York.
64. That Plaintiff was lawfully present at the vicinity of 150 Tillary Street, Brooklyn, New York.
65. That the "Officers," without probable cause or reasonable suspicion detained, arrested and imprisoned the Plaintiff.
66. That the Plaintiff was thrown to the ground, assaulted, searched, handcuffed and seized.
67. West was falsely arrested without provocation.
68. The Defendants then refused to provide medical treatment to West.
69. The Officers denied the Plaintiff prompt and necessary medical attention.
70. That all acts committed by "the officers" and other agents, servants, and/or employees and/or agents of the Defendant "City", were committed within the scope of their employment and under color of law, and while said officer was acting under the custom, policy, rules and/or regulations of the City.
71. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

72. That said acts constituted cruel and unusual punishment.
73. That said acts violated the Plaintiff's rights to due process of law.
74. That the Defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which include illegal seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in police cover-up, any and for all of the above contributing to the Plaintiff's false arrest, prosecution, and injuries.
75. The City negligently trained, retained, re-trained, supervised, disciplined, monitor and/or investigated the Defendant officers, when, upon information and belief, they had knowledge of their violent propensities and prior bad acts.
76. The Defendants' actions on January 16, 2021 were performed under the color of the policies, statute, ordinances, rules and regulations of the City of New York.
77. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, battered, assaulted, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.
78. That by reason of the aforesaid, the Plaintiff was injured in mind and body, and he was damaged.
79. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees,

and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SIXTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983, BY “RAHMAN,
CHENG, JOHN DOE, JIM DOE #1-6” EACH IN HIS INDIVIDUAL CAPACITY AND
AS AN AGENT OF THE CITY OF NEW YORK**

80. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "79" with the same force and effect as if more fully and at length set forth herein.
81. That at all times hereinafter mentioned, “officers” were employed by Defendants City and/or NYPD and each was acting under the color of his official capacity and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
82. That at all times hereinafter mentioned, the “officers” acted pursuant to orders and directives from Defendant City.
83. That during all times hereinafter mentioned, “officers” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and/or Section 1986.
84. That the unlawful and illegal conduct of the Defendant Officers deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of Plaintiff to be secure in their person and effects against unreasonable search and seizure, and the right not to be subjected to excessive force, under the Fourth and Fourteenth Amendments to the Constitution of the United States; and
- b) The right of Plaintiff not to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States;
- c) The right to be free of cruel and unusual punishment;
- d) The right not to be discriminated against based on race, age or creed;
- e) The right to prompt and necessary medical attention;
- f) The right to due process of law

85. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of Plaintiff's person, his false arrest and false imprisonment, battery and assault, the officers' conspiracy to violate the Plaintiff's due process of law and the malicious prosecution of the Plaintiff, Defendant "officers", violated the Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the Defendant officers violated 42 U.S.C. §1983.

86. That as a direct proximate result of the Defendants actions, the Plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

87. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries, to extricate himself from the indignities and humiliation fostered upon him by the actions of the "officers", individually and collectively.

88. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdiction of the lower courts, and seek compensatory damages, plus, punitive damages,

costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
FOR NEGLIGENCE AGAINST THE "CITY", THE PLAINTIFF ALLEGES:**

89. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "88" with the same force and effect as if more fully and at length set forth herein.
90. That the City and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the Defendants named herein.
91. That as a result of their negligence, the above-named Plaintiff was falsely detained, illegally seized, illegally searched, falsely arrested, falsely imprisoned, maliciously prosecuted and had his constitutional and civil rights violated.
92. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the Plaintiff demands judgment against the Defendants on the First through Seventh causes of action in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such other relief as to the Court seems just and proper.

Dated: New York, New York
December 15, 2021

/s/ROYCE RUSSELL, ESQ.
R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiff
112 West 34th Street 18 Fl.
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorney of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
December 15, 2021

/s/ROYCE RUSSELL, ESQ.

By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DERRICK WEST,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MOHAMMED M. RAHMAN SHIELD # 4071 OF THE 071 COMMAND, SERGEANT KEITH CHENG SHIELD # 644 OF THE 071 COMMAND, POLICE OFFICERS JOHN DOE AND JIM DOE #1-6 (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), ALL SUED IN THEIR CAPACITIES AS POLICE OFFICERS AND IN THEIR INDIVIDUAL CAPACITIES,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiff
112 West 34th Street Floor 18
New York, NY 10120
(718) 785 8890

To: City of New York
c/o Office of the
Corporation Counsel
100 Church Street
New York, NY 10007

Police Officer Mohammed M. Rahman
Shield #4071
c/o 71st Pct.
421 Empire Blvd.
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Police Officer John Doe
Police Officers Jim Doe #1-6
One Police Plaza
New York, NY 10007

The New York City Police
Department
1 Police Plaza
New York, New York 10038

Police Officer Keith Cheng
Shield #644
c/o 71st Pct.
421 Empire Blvd.
Brooklyn, NY 11225

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: December 15, 2021

Signature

/s/ROYCE RUSSELL, ESQ.

Royce Russell, Esq.

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PLEASE TAKE NOTICE

[] NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on

[] NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on